
Journal

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Court

HIGH COURT OF EAST PAKISTAN

Date

1965-08-25

Appeal No.

MATRIMONIAL SUIT NO. 1 OF 1964

Judge

ABU MD. ABDULLA

Parties

MUHAMMAD MUSTAFIZUR RAHMAN KHAN— PETITIONER VERSUS MRS. RINA KHAN AND OTHERS— RESPONDENTS

Lawyers

D. C. BHATTACHARJEE, A. K. M. NURUL ISLAM, MD. NURUL HUQ AND A. RAB (II) FOR PETITIONER. S. R. PAUL, K. A. BAKR AND A. JALIL FOR RESPONDENT NO. 1.

Statutes

SPECIAL MARRIAGE ACT (III OF 1872) - SS. 2& 21 SPECIAL MARRIAGE ACT (III OF 1872) - S. 11 DIVORCE ACT (IV OF 1869) - S. 19

Judgment

Judgment This Matrimonial suit is for a declaration that the petitioner's marriage with Respondent No. 1 is a nullity or in the alternative for restitution of conjugal rights.

The petitioner Md. Mustafizur Rahman Khan, is an Officer of the Police Department of the province. His case in the plaint is that he became acquainted with the family of respondent No. 1 since 1938. The petitioner alleges that the respondent No. 1, Rina Ghosh is the daughter of one Mr. S. M. Ghosh, originally a Hindu of Baira Police Station, ICaliganj, District Dacca, who had settled during the first Great War at Bagdad and became a Roman Catholic Christian by conversion and married respondent No. 2, a Roman Catholic lady of the city of Bagdad. Out of the said marriage nine (9) children were born—5 sons Badal Ghosh, respondent No. 3, Sekhar Ghosh, Tati Ghosh, David Ghosh, and four daughters—Lily Ghosh, Clara Ghosh, Alice alias Ajanta Ghosh and Rina Ghosh, respondent No. 1. The Ghosh family is alleged to have come to Dacca in or about the year 1938 or 1939 and settled at 18-A Joykali Mandir Road, Wari, Dacca. Mr. Ghosh since 1946 has cut off all connection with his family and lives in India. Shekhar one of the sons, also left Dacca and is living in India. The petitioner and Lily Ghosh, the eldest daughter of Mr. Ghosh appeared in the Matriculation Examination and Intermediate Examination in the year, 1943 and 1945 respectively and became acquainted with each other and in course of time a gradual intimacy grew between the family of the petitioner and the said Ghosh family. In 1947, Mr. S. A. Khan, the eldest brother of the petitioner was married to the said Lily Ghosh under the provisions of the Special Marriage Act, 1872 (Act III of 1872). The petitioner's family, thereafter, shifted to 5, Joykali Mondir Road, Wari and the intimacy between the two families became closer and the petitioner became almost a member of the Ghosh family. The petitioner's student career ended in 1952 and he joined the Police Service in 1955. During all these periods, the petitioner was maintaining close relationship with the members of the Ghosh family. The petitioner then alleges that during the posting of the petitioner in the District of Dacca as Additional Superintendent of Police from 1959 to 1962 a personal attachment grew up between the petitioner and the respondent No. 1, the youngest daughter of the respondent No. 2 Mrs. Ghosh. The petitioner further alleges that both the said respondent No. 1 and the petitioner agreed that they would marry each other after the completion of the former's studies for the degree of B. A. The petitioner alleges, however, that Mrs. Lily Khan did not like the idea of the petitioner's marrying her youngest sister and was always looking for obstacles and impediments which might ultimately prevent such marriage. In August 1962, the petitioner was transferred to the District of Jessore as Superintendent of Police but the petitioner visited the respondent No. 1 at her residence whenever he came to Dacca. During these visits the petitioner was requested by the respondent No. 1 to expedite the marriage but the petitioner himself asked her to wait for sometime till he made the necessary arrangements. On the 3rd day of January 1963, the petitioner according to the desire of respondent No. 1 formally proposed his marriage with her to respondent No. 3, the eldest brother of respondent No. 1 at the residence of the petitioner at Jessore when the respondent No. 3 halted at the petitioner's house on his way back from Khulna to Dacca. The respondent No. 3 requested the petitioner to wait for sometime as he was busy in setting up an industry in Khulna and other pressing matters at Dacca. In March 1963, Mrs. Lily Khan is alleged to have returned to Dacca after stay of about 6 (six) months in the U. S. A. On her arrival Mrs. Lily Khan came to know of the formal proposal of marriage between the petitioner and her sister and she became very much displeased and tried to delay the solemnisation of the marriage if not to stop it altogether. At the relevant time that is, since August 1962, the said Mrs. Lily Khan was living in the bungalow of the petitioner at Jessore where her husband Major S. A. Khan joined her in June 1963, and continued to stay with the petitioner. In the 3rd week of December 1963, the respondent No. 1 accompanied by her mother, respondent No. 2, went to Jessore and stayed at the residence of the petitioner for about a fortnight. During this period,

respondent No. 1 is alleged to have told the petitioner that their marriage was being delayed by Mrs. Lily Khan and that on her return to Dacca she would prevail upon her relations to expedite the marriage and in the event of delay or disinclination shown by her relations, she would shortly come to Jessore for solemnisation of their marriage. The petitioner further alleges that in the 2nd week of January 1964, the respondent No. 1 went to Jessore together with her mother respondent No. 2, second sister Miss Clara Ghosh and younger brothers Tati Ghosh and David Ghosh and put up with the petitioner. Tati Ghosh and Miss Clara Ghosh returned to Dacca in the last week of January, and in the 1st week of February, 1964 respectively. The petitioner alleges that sometimes after their arrival at the residence of respondent No. 1, clearly expressed her desire to her mother and other relations that immediate arrangement about the marriage should be made and the respondent No. 2 also agreed thereto and it was the further desire of respondent No. 1 as well as her mother respondent No. 2 that the marriage should be solemnised under the Special Marriage Act, 1872 (Act III of 1872) to which the petitioner in spite of his objection at the initial stage ultimately agreed. The respondent No. 1 accordingly also requested the petitioner to give proper notice for a solemnisation of the marriage as required under the law. In accordance with their desire, the petitioner gave notice in writing under Act III of 1872 to the Registrar of Marriages for the District of Jessore on the 1st of February 1964.

Mrs. Lily Khan did not oppose openly nor expressed her disapproval in presence of the petitioner or his brother Major S. A. Khan.

Thereafter, the petitioner alleges that in accordance with the desire of respondents Nos. 1 and 2, the petitioners eldest brother Major S. A. Khan accompanied by his wife Mrs. Lily Khan, came to Dacca in the 3rd week of February 1964, and informed the respondent No. 3 and his other relatives at Dacca of the proposed marriage. On the same evening the respondent No. 3 together with his sister Mrs. Clara Ghosh and Mrs. Ajanta Islam, Mr. Islam and his business partner Mr. Abdus Sahid Khan and Mrs. Lily Khan who were putting up with the respondent No. 3 came to 22, Elephant Road, the residence of petitioner's elder brother Mr.

Anwar Ali Khan where the petitioner's mother was putting up at that time. The Ghoshes are alleged to have brought sweetmeats as an expression of happiness over the finalisation of the marriage proposal. The petitioner states that a number of persons were present on the occasion at the said 22, Elephant Road where it was disclosed that the required notice under the Special Marriage Act has already been served and respondent No. 3 is alleged to have expressed his desire that the social ceremonies connected with the marriage would be celebrated in a befitting manner at Dacca after the registration and solemnisation of the marriage at Jessore. The petitioner then alleges that in pursuance of the talks stated above and with the consent of respondent No. 2 the marriage between the petitioner, a bachelor of about 37 years of age and the respondent No. 1 a spinster of about 28 years of age, was solemnised at Jessore on the 22nd February 1964, before the Registrar of Marriages, Jessore under the provisions of the Special Marriage Act, 1872 before witnesses. The date of actual solemnisation had been kept secret from Mrs.

Lily Khan but after the solemnisation of the marriage, the respondent No. 1 went back to the petitioner's house and the petitioner and David Ghosh went straight from the Office of the Registrar of Marriages to the Dawood Public School for escorting Mrs. Lily Khan to the petitioner's house and informed her of the actual solemnisation of the marriage. Mrs. Lily Khan is alleged to have taken offence as the actual solemnisation of the marriage had been kept secret and on arrival at the house quarrelled with respondent No. 1 and thereafter, in the evening she left the house of the petitioner in a fit of rage and shifted to a house in the Cantonment area which had already been allotted to the petitioner's brother, Major S. A. Khan. She is alleged to have held out the threat that she would see that the petitioner could not lead any peaceful

conjugal life with the respondent No. 1. Before Mrs. Lily Khan had left the petitioner the respondent No. 2, the mother of respondent No. 1 proposed to the petitioner that the legal formalities having been completed, social ceremonies were to be performed at Dacca for which the respondent Nos. 1 and 2 would start for Dacca on that day and that the petitioner would join them at Dacca on the next day. The petitioner agreed to the said proposal and allowed the respondent No. 1 to go to Dacca with her mother for the aforesaid purpose. The petitioner and the respondent Nos. 1 and 2 then went to Khulna and remained there on that day and that after respondents Nos. 1 and 2 had left for Dacca on the next day by the morning flight Helicopter Services, the petitioner returned to Jessore, took necessary leave of absence from the headquarters and left for Dacca by the afternoon flight on that very day. That after arrival at Dacca, the petitioner told the respondents Nos. 2 and 3 to expedite the performance of social ceremony. But the respondents Nos. 2 and 3 put off the celebration. The petitioner was very much disturbed in his mind for the delay and there was an altercation between the petitioner and respondent No. 1 on the 28th of February 1964. The period of leave being over by that time, the petitioner went back to Jessore on 29th of February 1964. The petitioner alleges that in the meantime Mrs. Lily Khan went to Dacca and influenced the mind of respondents Nos. 1 and 2 against the petitioner. Thereafter, the petitioner came to Dacca on or about 14th of March 1964 and saw the respondents Nos. 2 and 3 at their house and asked them to hold necessary social functions immediately and allow respondent No. 1 to accompany him to Jessore, but in spite of the best cordial talks, nothing materialised on that occasion as well. Thereafter, the petitioner was granted four months leave which he had applied for earlier in anticipation the marriage and on expectation that both he and respondent No. 1 might together go abroad after the solemnisation of their marriage. The petitioner availed of the leave from the 1st day of May 1964 and came to Dacca but found the respondent No. 1 as well as respondents Nos. 2 and 3 perceptibly cold in their relation with and attitude to the petitioner at which the petitioner became very much mortified and emotionally upset. The relations of the petitioner also tried to straighten the matter but were given many assurances and hopes without any tangible result. The petitioner had gone to West Pakistan and came back to Dacca. The petitioner visited the house of the respondents and had talk with them but the respondent No. 1 told the petitioner that she was not mentally prepared at the moment to go to the place of the petitioner but would go sometime after and respondents Nos. 2 and 3 appeared to support the respondent No. 1 in her attitude. The petitioner and his relations, however, continued their efforts till the end of the month of July 1964 without any effect. On 4th August 1964 the petitioner issued notice through his lawyer to the respondent No. 1 asking her to come to the place of her husband and discharge her marital obligations to him. Notices were also issued to the respondents Nos. 2 and 3 demanding of them to cease exercising undue influence upon the respondent No. 1 and allow her to go to the place of her husband. The respondent No. 1, through her lawyer sent a reply to the notice of the lawyer of the petitioner. It was received by him on 20th of August 1964 and in the said letter she declared that she was not the legally married wife of the petitioner and no legal or valid marriage had been solemnised before the Registrar of Marriages, Jessore. On the receipt of the said letter the petitioner realised that the respondent No. 1 all the time by her deeds as well as by words during the last several years led the petitioner to believe that she was not only willing, but also eager to enter into nuptial bond with the petitioner although in fact she had no desire to marry the petitioner. By the attitude of the respondent No. 1 in her aforesaid letter according to the petitioner, it can be inferred that by deliberate deception, false representation and pretended behaviour, the respondent No. 1 caused the petitioner to believe that she was intensely desirous of such marriage and thus made him go through the formalities of marriage although the respondent No. 1 had no such desire and respondent No. 1 thus practised a deliberate fraud upon the petitioner which has vitiated the entire marriage proceedings the consent and agreement of the petitioner to the said marriage having been induced by means of fraud itself. The petitioner alleges that the marriage was null and void and as such the petitioner is entitled to a decree for nullity of the said marriage against the respondent No. 1. The petitioner then prayed

that if it was held that the marriage was null and void then the petitioner was entitled to restitution of the conjugal rights. The petitioner, therefore, prays for declaration of the marriage as null and void and in the alternative for an order for restitution of conjugal rights. Hence the petitioner has instituted this suit under section 19 of the Divorce Act.

The mother and brother of respondent No. 1 also are parties as respondents 2 and 3 respectively.

A written statement has been filed by respondent No. 1. Respondents Nos. 2 and 3 though they did not file any separate written statement, supported the respondent No. 1.

Respondent No. 1's case is a total denial of the story that any personal attachment grew up between the petitioner and respondent No. 1 and that both agreed to marry each other. She also denied that there was any formal proposal of marriage by the petitioner to respondent No. 3, the question of displeasure of Mrs. Lily Khan also was denied as there having been no proposal of marriage, there was no question of displeasure as assumed. The respondent's case is that on 12th of January 1964 Major S. A. Khan, the brother-in-law of the respondent and eldest brother of the petitioner was at Dacca and in apprehension of communal riot, took respondent No. 1, her mother respondent No. 2, her brother Tati Ghosh and David Ghosh and sister Clara Ghosh with him to Jessore for safety where they stayed until 22nd February 1964. She, however, denied that she expressed any desire to her brother or to her mother to the effect that immediate arrangement about the marriage should be made and also denied that she had settled that the marriage should be solemnised under the Special Marriage Act, and that she requested the petitioner to give any notice. If any notice was given by the petitioner it must have been with a fraudulent motive. With regard to the occurrence of 22nd February 1964, the respondent No. 1's case is that on that date respondent No. 1, her mother and her brother David Ghosh and the family of her eldest sister Mrs. Lily Khan, were all putting up with the petitioner at his bungalow at Jessore. In the morning, Mrs. Lily Khan, who was serving as Head Mistress of the Daud Public School went to school with respondent No. 2 and Major S. A. Khan had been out on tour. The petitioner suddenly came to the residence from his office at 11 A.M. and informed the respondent No. 1 and her brother David Ghosh who were only present in the bungalow at that time that their elder brother, respondent No. 3 Badal Ghosh who was then at Dacca had been stabbed to death and there was likelihood of disturbance at Jessore also and that they should at once start for Calcutta. On this news the respondent No. 1 burst into tears and became bewildered but the petitioner asked them to get ready at once to leave the place and to make necessary arrangement to start for Calcutta without waiting for the return of the respondent No. 2 whom he would take from the school. The respondent No. 1 then stated that she and David Ghosh were taken to an Officer by the petitioner along with two other Police Officers whom she later came to know, were one Mr. Md. Nuruzzaman (P. W. 2) and Mr. Doulat Hossain Khan (P. W. 3) and at that office in a bewildered state the respondent No. 1 and David Ghosh affixed the signatures on printed forms at the request of the petitioner, in the belief that the said signatures were necessary for the purpose of their going to Calcutta as they were given to understand by the petitioner. They were then again taken to the house and when Mrs. Lily Khan respondent No. 2 had arrived, to her utter surprise, the petitioner disclosed that the marriage between the petitioner and the respondent No. 1 was registered. Respondent No. 1 then realised that fraud and deception had been practised upon her by the petitioner and the news of death of respondent No. 3 and the probabilities of breaking out disturbances at Jessore were false and got up for the purpose of the aforesaid deception. Thereafter, Mrs. Lily Khan and the respondents Nos. 1 and 2 thought it unsafe to stay in the house of the petitioner and that very day Mrs. Lily Khan shifted to a Government allotted house at Cantoment area, Jessore and respondents Nos. 1 and 2 rushed to Jessore airport to come to Dacca but as no ticket was available they left for Khulna, the same day and thereafter they came to Dacca by air. Respondent No. 1 denied all the other allegations

made in the plaint. She has categorically stated that she had never agreed to enter into any marriage with the petitioner and that no influence has been exercised on her mind by respondents Nos. 2 and 3. That the reply sent by her lawyer was correct and in fact fraud has nullified the so-called marriage proceedings but this fraud was committed by the petitioner himself and she also wants the marriage to be declared as not a marriage in the eye of law and as a nullity and that the respondent No. 1 was herself contemplating legal proceedings to set aside the marriage on the failure of the common friends and relation of the parties to settle up the matter. She has also stated that there being no valid marriage there could not be any question of a restitution of conjugal rights.

Issues, which were framed in this, are to the following effect : (1) Was the marriage between the petitioner and the respondent No. 1 a nullity? (2) If not, to what relief, if any, is the petitioner entitled? The petitioner has examined 10 witnesses and the respondent No. 1 has examined eight (8) witnesses of whom D. W. 2 Mrs. Lily Khan, D. W. 3 Mrs. Ghosh and D. W. 4 Mrs. Rakeya Abbas were examined on commission.

The case is unique in one respect that both the parties, without any collusion, want the marriage to be declared a nullity. The petitioner wants the marriage to be declared a nullity on the ground that the consent given by the respondent No. 1 to the marriage was absent at the time of marriage which he could gather from her conduct after the marriage and as such the petitioner had been led to contract the marriage on misrepresentation by the respondent No. 1. The respondent No. 1 wants to have the marriage declared void on the facts alleged in her written statement to the effect that there had been no talk of marriage between her and the petitioner but a fraud was practised upon her by the petitioner and she was induced to sign the marriage forms necessary for the purpose of performance of marriage under the Special Marriage Act on a misrepresentation by the petitioner that these were forms necessary for her going over to Calcutta.

The witness No. 1. Abu Isa Mohammad Mostafa is a District Registrar who has power under the Special Marriage Registration Act to register the marriage, has testified that the petitioner went to his office one day and sought instruction from him regarding Civil Marriage. He told him that a notice is necessary and he has proved a notice which has been marked as Exh. 1, which was given by the petitioner on 1-2-64. This notice was signed by the petitioner in presence of P. W. 1 Abu Isa Md. Mostafa and also signed by P. W. 1 once when he received it and then he signed it when he hung it up on the notice-board and then finally on 19th February 1964, when it was filed. P. W. 1 has then testified that the marriage took place pursuant to the said notice. In connection with the marriage the Registrar has proved two documents—one is the declaration form which has been marked Exh.

2 and the other is the Registrar's Certificate marked Exh. 3. With regard to the declaration form, the Registrar has stated that the bride-groom and the bride made declaration and that they signed in his presence. The Registrar has affixed his signature in the declaration form and his signature has been marked as Exh. 2-A. The signature of the bride-groom has been marked as Exh.

2(B) and the signature of the bride-respondent No. 1 has been marked Exh. 2(C). The declaration form has also been signed by David Ghosh D. W. 6, and his signature has been marked as Exh. 2(D) and it has also been witnessed by one N. Zaman, P. W. 2 and one Doulat Hossain Khan, P.W. 3. Their signatures have been marked as Exhs. 2(E) and 2(F) respectively. The Registrar has stated that the marriage was solemnised after the declaration and thereafter, he granted Registrar's Certificate which has been marked as Exh. 3. The Registrar proved his signature Exh. 3(A) and has also proved the signature of the petitioner and respondent No. 1

Exhs. 3(B) and 3(C) and as well as of those of the witnesses David Ghosh, N. Zaman, and Doulat Hossain Khan, which have been marked as Exhs. 3(D), 3(E) and 3(F) respectively. He has stated in his examination-in-chief that the formalities of solemnisation of marriage under the Special Marriage Act is that the marriage is to be solemnised by taking oath both by the bridegroom and the bride and he administered the oath personally and formalities were duly performed.

P. W. 2 is one A. K. M. Nuruzzaman, the Court Inspector of Jessore in February 1964. He has testified that on 1st February 1964, he was rung up by the petitioner, the then Superintendent of Police, Jessore and was asked to remain present in the Office of the District Registrar because he wanted to get himself married under the Special Marriage Act and as per his request, he went to the Registrar's Office where the petitioner arrived sometime later. The witness took the petitioner to the Registrar's office introduced him, and told the Registrar the intention of the petitioner whereupon the Registrar, P. W. 1 gave a form Exh. 1 and according to the direction of the petitioner he filled up the form and it was signed by the petitioner and handed over to the Registrar. He has also given evidence regarding the events of 22nd February 1964. He has stated that he received another phone call from him requesting him again to go to the Registrar's Office because the marriage would be solemnised on that date and he took one Doulat Hossain Khan, P. W. 3, the probationer SubInspector under him at the time to the Registrar's Office where, on arrival, he told the Registrar that Mr. Khan would have the marriage solemnised on that date. He has testified that sometime after Mr. Khan with the respondent No. 1 and her brother David Ghosh, D. W. 6 all came in a jeep. He took them all inside the Registrar's Office and the petitioner told the Registrar that they wanted to have the marriage solemnised on that day. Thereafter the Registrar brought out some forms and also simultaneously inquired both from the petitioner and the respondent No. 1 whether the marriage should be solemnised and both of them said, "Yes". Then a declaration form was handed over to by the Registrar and according to the dictation of the petitioner he filled the form and that is Exh. 2. He proved his signature on the form and stated that the petitioner, respondent No. 1 and her brother David Ghosh, D. W. 6 and P. W. 3 Doulat Hossain Khan all signed as well as the Registrar. Thereafter, he has said that the Registrar looked into a book and stated that both of them should take oath. He stated that the petitioner took the oath three times within his hearing and respondent No. 1 also did so.

Thereafter another form was filled up and he has identified that form as Exh. 3 his signature thereon as Exh. 3(E).

P. W. 3 has testified that he was a probationer-Sub-Inspector at the relevant time and he has testified only to the event of 22nd February 1964. His evidence is that P. W. 2 N. Zaman, told him that the marriage of their Superintendent of Police would be solemnised in the District Registrar's Office and he accompanied Mr. Zaman to that place. A little after their arrival at the District Registrar's Office the petitioner, respondent No. 1 and her brother David Ghosh, D. W. 6 came to the District Registrar's Office in a jeep. He has corroborated P. W. 2 in all respects. He has also given his signature to the declaration form Exh. 2 and has identified his signature as Exh. 2(F). He is also signatory to Exh. 3 and has identified his signature as Exh. 3(F). This witness was examined on 6th of July 1965, whereas P. Ws. 1 and 2 were examined on 2nd of July 1965. There is an attempt at some improvement in the petitioner's case through this witness. Where P. W. 1 has testified first simply that marriage was solemnised after the declaration and then being pointedly asked by Mr. Bhattacharjee that the marriage was solemnised by taking oath and that he administered the oath and P. W. 2 has said that the petitioner and respondent No. 1 took oath three times, this witness has given the form of the solemnisation as set out in section 11 of the Special Marriage Act, Act III of 1872.

P. W. 4 Md. Abdul Wahab is a Head Assistant of the Deputy Inspector-General of Police of

Khulna and he has proved Exh. 5, the application for leave made by the petitioner on 23rd of February 1964, P. W. 5 is one A. Matin who has been examined by the petitioner to prove a prescription dated 24-2-64 for one Mrs. M. R. Khan prescribed by one A Ali.

P. W. 6 is one H. C. Das, a palmist. He has given evidence that he is known to the Ghosh family. He has testified that the petitioner was introduced to him in the last week of February, by Tati Ghosh saying that the petitioner was a Superintendent of Police, Jessore and was his brother-in-law.

P. W. 7 Anwar Ali Khan is the elder brother of the petitioner and a resident of 22, Elephant Road, Dacca. He has given the relationship of the two families and more or less corroborated the plaint case regarding this. He has testified to prove one aspect of the case which does not find place in the plaint, namely, that when he knew from the petitioner about the proposal of marriage he wrote a letter to his eldest brother Major S. A. Khan who was then posted at Jhelum and he replied that he had no objection to the marriage and has proved the letter written by the said S. A. Khan on 3-3-63 to him which letter he had forwarded to the petitioner with his own comments. The next stage of his evidence is with regard to the events of 18th February 1964 at 22, Elephant Road. He has testified that at noon his elder brother Shawkat Ali Khan came to him and said that people from the other side would come in the afternoon on that day and the final talk of the marriage would be held. Then in the afternoon respondent No. 3 and almost all the members of the family of respondent No. 3, namely Alice, Alice's husband Tajil Islam, Clara and their friend Abdus Sahid came. From their side he was present and another brother Amanullah Khan and the eldest brother S. Ali Khan and another brother Dr. Ahsanullah came. All these brothers have not been examined. Explanation has not been given for non-examination of Major S. A. Khan. Amanullah Khan and Dr. Ahsanullah Khan are alleged to be abroad. The witness said that on the 18th, there was a talk about the marriage and about the fact of notice having been given and he also said that the Ghosh family had come with some sweets. Then he said that he received a telephone from the petitioner to the effect that the marriage had been solemnised and that the respondent No. 1 and her mother would be coming in the morning and that the petitioner would be following in the evening. In the morning he is alleged to have gone to the respondent No. 3 house at Sideswari where he was entertained with teat. He received the petitioner and in the evening of the 23rd of February 1965, took him to his own house and he has corroborated the plaint case more or less regarding the events afterwards. He has also testified that prior to the marriage he had seen the couple on many occasions together in places such as New Market.

P. W. 8 is the petitioner himself. He has given practically the resume of the plaint case in his evidence. He has improved on the story of P. W. 7 regarding the writing of letter to the eldest brother, Major S. A. Khan by saying that Badal Ghosh requested Anwar Ali Khan to write to the eldest brother who was then posted in West Pakistan to come over for a short period to Dacca and take initiative in the matter so that the marriage could be solemnised quickly. As regards the position of Mrs. Lily Khan he has answered to the specific question how she could delay the matter, he says that she did not take initiative in the matter and she was all the time apathetic. He has further given evidence that during the period that respondent No. 1 accompanied her mother and sister Clara Ghosh who had come to Jessore on 22nd December 1963, they had a good time and went to see sights, to Sundar Ban, Sagardari and also visited other important places. The petitioner states also that on 13th January, respondent No. 1 came back to Jessore with her mother and her sister Clara Ghosh her brother Tati Ghosh and David Ghosh and stayed with him at his bungalow. That on her arrival the respondent No. 1 expressed her intention clearly in presence of her mother and other relations about her desire of early solemnisation of marriage and her mother respondent No. 2 consented to the early solemnisation of the marriage. The respondent No. 1 and her mother insisted that the marriage should be performed under the Special Marriage Act. The petitioner says: "I was rather reluctant because there is a provision

which amounts renunciation of religion but ultimately to satisfy the desire of respondent No. 1 and practically respondent No. 1, I agreed.” Then the petitioner says that at the request of respondent No. 1 and with the consent of respondent No. 2 he gave a notice as required under the law to the District Registrar on 1-2-64 and he has proved Exh. 1. He testifies to the departure of his brother Major S. A. Khan and his sister-in-law Mrs. Lily Khan for Dacca on 18-2-64 and to his receipt of information over the telephone by his brother P. W. 7 regarding the finalization of the talk of marriage in the presence of Badal Ghosh and others as testified by P. W. 7. Mrs. Lily Khan and Major S. A. Khan is alleged to have returned to Jessore sometime on 20th or 21st February 1964.

Respondent No. 1 asked the petitioner to solemnise the marriage. The petitioner alleges that respondent No. 1 and he discussed the matter with respondent No. 2 who gave her blessings. Accordingly on 22nd morning at about 12-30, the petitioner with Mrs.

Rina Ghosh, her brother David Ghosh went straight to the office of the District Registrar where he found, according to his instructions, P. W. 2, N. Zaman and P. W. 3, Doulat Hossain Khan present. P. W. 2 took the petitioner and respondent No. 1 and David Ghosh to the District Registrar where they took their seats in the ejlash of the Registrar. The petitioner said that the District Registrar first inquired of them whether they were going to marry under the Special Marriage Act and having heard the reply in the affirmative, from both he made over a declaration form (Exh. 2) the petitioner who in turn made over the form to P.

W. 2 Nuruzzaman and under the dictation of the petitioner the form was filled up by N. Zaman, P. W. 2. The petitioner first signed the declaration form, then the respondent No. 1 signed followed by her younger brother David Ghosh, D. W. 6, and Mr. N.

Zaman. The District Registrar pointed out that another witness would be necessary whereupon the petitioner requested, P. W. 3, Doulat Hossain Khan to sign the form. The petitioner proves the various signatures and after that the District Registrar took out a small book and called upon the petitioner and the respondent to take oaths. The petitioner has given the form quoted in section 11 of the Act (section 11 of the Special Marriage Act). Similarly, the respondent No. 1 is alleged to have pronounced ‘oath’ three times. Thereafter, the petitioner as well as the respondent No. 1 signed the exhibit and the petitioner has proved his signature and the other signatures on the said document. The petitioner has improved his case in the plaint by saying that he went towards the airport after leaving the respondent No. 1 and David Ghosh, D. W. 6 in his bungalow which was on his way and went to the Daud Public School to bring his sister-in-law, Mrs. Lily Kban. Petitioner then gives a picture that being informed about the registration of the marriage she is alleged to have flown into a temper saying that concealment of the date of the registration of marriage was an insult to her. The petitioner thereafter tried to give a picture that Mrs. Lily Khan created a scene inside the bungalow and quarrelled with respondent No. Ingoing to the extent of giving her a slap and respondent No. 2 even could not control Mrs. Lily Khan. Thereupon Respondent No. 2 came to the petitioner and respondent No. 1 who were in the bedroom stating that the marriage has been registered and a social ceremony should take place and as such she proposed to go to Dacca with the respondent No. 1 that very day and asked the petitioner to follow on the next day. The petitioner believing her in good faith allowed the respondent No. 1 and respondent No. 2 to leave for Dacca via Khulna and in the meantime the petitioner alleges that Mrs. Lily Khan removed herself to another quarter in the Cantonment area. At Khulna where the petitioner is alleged to have accompanied the respondent No. 1 and respondent No. 2, respondents Nos. 1 and 2 were taken to the rest house of Ajax Jute Mills where the petitioner’s brother Amanullah Khan came to meet them and they talked to them till about 10 P.M. in the night. In the morning of 23rd, the petitioner’s brother Amanullah Khan and the petitioner went to see off the respondents Nos. 1 and 2 to the Heliport. From Khulna the petitioner returned to

Jessore and submitted a petition for leave which has been proved as Exh. 5. Obtaining permission to leave for Dacca in anticipation of the granting of the leave, the petitioner alleges to have left Dacca on the same evening. On arrival at Dacca, the petitioner went to see the respondent No. 1 and her mother who were putting up with respondent No. 3. The respondent No. 1 is alleged to have complained of headache and stomach pain at about 9 or 9-30. Respondent No. 3 took the petitioner for dinner at the Dacca Club. Respondent No. 3 assured him that the ceremony connected with the marriage would be held and that respondent No. 1 would accompany the petitioner to Jessore. The petitioner has given further evidence to the effect that on 24th morning Dr. Ali Asdar came to the residence of respondent No. 3 and examined respondent No. 1 and gave a prescription for her treatment and Tati Ghosh came back with the medicine in accordance with the prescription at 1 or 1-30. He has also testified regarding the visit to the house of P. W. 6 H. C. Das, the palmist. On 28th February, the petitioner alleges that there was an altercation regarding the delay in holding the ceremony connected with the marriage and as his casual leave had expired he left for Jessore on 29th of February 1964. Thereafter, he has more or less corroborated the plaint case.

P. W. 9 is one Sanatan Saha who has been examined to corroborate the incident of 18th of February 1964 at 22, Elephant Road.

The witness says that he works under Anwar Ali Khan and that he was living at the relevant time at 25, Elephant Road and was present when the talks of the marriage took place.

P. W. 10 is Abdul Hamid Choudhury, an Advocate of this Court. He has married the youngest sister of the petitioner, Mr. Mustafizur Rahman Khan. He has also been examined to testify as to the incident of 18th of February 1964, at 22, Elephant Road. He gives more details than other witnesses regarding the discussion and the proposed celebration. He even mentioned the proposal of the hire of the banquet hall of Shahabag Hotel for holding the celebration. He has also testified to his efforts in dissolving the deadlock. These are all the witnesses who have been examined on behalf of the petitioner.

The respondent has examined eight (8) witnesses on her behalf. Respondent's witness No. 1 is Mrs. Lily Khan, the eldest sister of the respondent No. 1. She has given evidence on commission and has stated that she was posted at Jessore as Principal of Doud Public School at Jessore since the middle of 1964 and was in the house of the petitioner who had been transferred to Jessore as Superintendent of Police. She has stated that the respondent No. 1 and respondent No. 2 came to stay with them during December 1963, to spend their Christmas holidays. She has further stated that respondent No. 1 and her mother and Clara Ghosh and her brothers Tati and David Ghosh were brought to Jessore at the instance of her husband as the situation in Dacca was not very peaceful and he thought that there might be repercussion in East Pakistan of the events in India. The case given in the written statement has been improved by the addition in the evidence of this witness to the effect that some neighbours, namely, the Deb Nath family also accompanied the respondent No. 2 at the same time and they were all putting up in the bungalow at Jessore. She has stated that Deb Nath family returned to Dacca between first or 2nd week of February 1964. She has denied that there was any talk of marriage between the petitioner and her sister respondent No. 1 in the month of January 1964. She admits that she went to Dacca on 18th of February 1964. She went to see her mother-in-law along with her brother Bidal Ghosh, the other sister Clara, Ajanta Islam and her husband Tajal Islam. She denied that there was any talk of marriage between the respondent No. 1 and the petitioner during her visit to her family on that date. When asked whether there was any talk of marriage with any body else to her knowledge she replied. 'I did not over hear.' Regarding the events of 22nd February 1964, the witness stated that she went to the School in the morning with her mother and one of her daughters who reads in the said school and that she left at about 7-30 in

the morning leaving in the house her sister, respondent No. 1, her brother David Ghosh and her brother-in-law, Mr. Mustafizur Rahman Khan and her eldest daughter who was studying I. A. in the M. M. College, Jessore and who went to the college usually at 10 A.M. The witness states that she returned at about 1-30 P.M.

and found the petitioner and her sister and her brother David Ghosh in the house. The petitioner was sitting in the drawing room and her sister in one of the bedroom and David was roaming about. The witness found the respondent No. 1 crying and when accosted the respondent No. 1 rushed to her mother and embraced her and replied to her question stating that her brother Badal Ghosh had been stabbed. The petitioner is alleged to have given that news to the respondent and suggested that all of them must leave for India immediately. She has quoted her sister respondent No. 1 regarding the statement made by the petitioner to her. "You must leave for India at once. You must come with me to sign some papers and I shall escort you to the border". On inquiry the witness is alleged to have learned from her brother-in-law that he had married respondent No. 1 and the marriage was solemnised at the Registrar's Office. She told her mother what respondent No. 1 had stated was not true and that the respondent No. 1 and the petitioner went to the Registrar's Office and got married. She has further stated that when she asked respondent No. 1 about the truth of the matter, she had replied "I did not know anything, I was asked to sign 2 papers and I have signed the papers". Respondent No. 1 had stated that she had signed those papers at a place which looked like a house and that she had been taken there by the petitioner who came in a jeep with two other Police Officers along with their brother David Ghosh. When respondent No. 1 learnt about the marriage she became stunned and her mother also became very sad and expressed her desire not to stay in the house any more and her mother along with respondent No. 1 and David Ghosh left for Khulna in the car of Mrs. Lily Khan. The witness herself telephoned for her school bus and left the house with her daughters. The respondent No. 1 and her mother left earlier than the witness. She arrived at her new quarter at about 3 P.M. and took her lunch in the hostel and the Superintendent of the Hostel Mrs. Rokeya Abbas met her and she told her about the incident of the morning. She has testified that she had come over many times after that incident to Dacca but did not meet the petitioner at all. She has denied that she stood in the way of marriage between the petitioner and her sister, the respondent No. 1.

Respondent's witness No. 2 is Mrs. Rokeya Abbas. She has testified that she knows respondent No. 1 and her family for 15 years through Mrs. Lily Khan. She has testified that Mrs. Lily Khan was the principal of the school in which she was teaching at Jessore and that Mrs. Lily Khan was putting up with her brother-in-law Mr. M. R. Khan, who was Superintendent of Police at the relevant time where she had been a visitor but had never heard about any proposal of marriage between respondent No. 1 and the petitioner. She has testified that on the evening of 22nd February 1964, Mrs. Lily Khan and her daughter went to the quarter in the Cantonment area and she went to meet her. The quarter was incomplete as there was no light and water. On her inquiry Mrs. Lily Khan told her that she had left the place of the petitioner as marriage had taken place between the respondent No. 1 and the petitioner and she did not like to stay there.

D. W. 3 Mrs. Asnat Ghosh is the mother of the respondent No. 1. She has testified that she is the mother of nine children— five sons and four daughters, of whom Mrs. Lily Khan is the eldest and Rina Ghosh is the youngest daughter. She knew the petitioner since the marriage of her daughter Mrs. Lily Khan with Mr. S. A. Khan. She has categorically denied that there was ever any love between the petitioner and the respondent No. 1.

She admitted that having gone to Jessore in the 3rd week of December, 1963 with her two daughters Rina Ghosh and Clara, they stayed with her eldest daughter Mrs. Lily Khan who was staying with the petitioner in order to pass Christmas time and stayed there for about 10 days

and came back before the new year, with her daughters. She denied to have noticed any intimacy with respondent No. 1 and the petitioner during her stay. Then she states that she went back again in 1964 with all her children excepting Badal and was staying in Jessore in the house of the petitioner. She has testified that Clara and Tati went back to Dacca sometime before 22nd February 1964. On 22nd February 1964 she went to the school with her daughter Mrs. Lily Khan and returned from school at about half past one when she found her son David' and her grand-daughter Rubi in the house. She found the petitioner in the drawing room and respondent No. 1 was inside in her bed room, notice that both her son and daughter Rina were crying and on query respondent No. 1 told her that her brother Badal Ghosh had been stabbed whereupon she herself started crying. When her eldest daughter Mrs. Lily Khan came and said, "Don't cry, All are lies." After Mantu told these are all lies. My daughter Lily said, "Mantu got married with Rina." Rina, respondent No. 1 began crying. She said, "I am not married." The petitioner had taken her and cheated her. The petitioner had come with a jeep saying that there was trouble in Jessore and took her to a house or something like that and then he gave a paper to her and asked her to sign. She and her brother signed. She did not know what she signed. The witness then said that she left the house and went to Khulna with David and respondent No. 1 where she was for one night where her son Badal Ghosh has got a house, and in the morning they came back to Dacca by helicopter. She has testified that thereafter she had not met the petitioner at her house at Dacca.

D. W. 4 is one A. Q. M. Naim. He is serving in the Ajax Jute Mill as an Administrative Officer. He has testified that there is a rest house attached to the Ajax Jute Mill, and that Mrs. Ghosh, respondent No. 1 and David Ghosh went to that building on the evening of 22nd of February 1964, and on the following morning they came to Dacca by the first flight of the helicopter and he purchased the tickets for them for which the money was paid by Mrs. Ghosh. He denied that petitioner and his brother Mr.

Amanullah Khan went in the evening of 22nd February 1964, to the rest house of the Ajax Jute Mill, nor did he see them in the heliport at Khulna on the next morning.

D. W. 5 is the respondent No. 1. She has categorically stated that she professes Christianity by faith and is a Roman Catholic and that she never renounced her faith and she has categorically denied that she was ever in love with the petitioner nor did she agree with the petitioner during the period 1959 to 1962 to marry him. She admitted that she went in December 1963, to Jessore to spend the Christmas holiday along with her mother and other members of the family. She denied that during her stay at Jessore in .1963 she desired to marry the petitioner and stated that there could be question of her insisting upon early solemnisation of marriage with the petitioner when there was no talk of marriage. She has admitted that she again went to Jessore on 13th January 1964, accompanied by her mother, second sister Clara, Tati and David her brothers, with her brother-in-law. Major S. A. Khan on the representation that it would be safer there as there was danger from the neighbouring people. She has denied that she ever expressed the desire during her stay in the second period at Jessore to marry her brother-in-law's brother, the petitioner. She has specifically stated that she used to regard him as her elder brother. She has denied of knowledge about the notice Exh. 1. Regarding the events of 22nd February 1964, she has stated that at about 7-30 A.M. her mother and her eldest sister and her sister's daughter Rita Khan went to school and she was in the bungalow with her brother and the other daughter of Mrs. Lily Khan, Rubi Khan, and the petitioner. At about 9-30 Rubi Khan went to college and the petitioner went out. At about 11 or 11-30 the petitioner came and said, "Just now I received an information that your elder brother Mr. Badal Ghosh has been stabbed at Dacca and here it will not be wise for you to stay because there is already rioting at Dacca. The refugees are coming in. So hurry up with me and sign a paper and I will arrange for your transport to India." Hearing about the stabbing of their brother both respondent No. 1 and her brother David Ghosh began to

weep and asked the petitioner to tell about this fact to her mother. Then he replied, "You start first. We shall arrange for your mother later on." Whereupon she and her brother David came out and found a jeep waiting in which there were two Police Officers with uniform and a driver were sitting. All three were sitting behind." After that the respondent boarded the jeep which was being driven by the petitioner. The respondent No. 1 was taken to a Basa or Office and she and her brother were kept sitting in the jeep. The two Police Officers and the petitioner went inside the room. After 3 or 4 minutes the petitioner came and took them with him. There she was given two typed papers and something were written on them which she did not see and the petitioner asked her to sign. She signed first and thereafter David signed. Thereafter all of them came back to the jeep and took their seats. Then the petitioner took her back to the quarter at Jessore where she was lying down on bed and was weeping and was not in her sense. At about half past one her eldest sister Mrs. Lily Khan, her mother respondent No. 2 and her niece returned from the school whereupon she clasped her mother saying that brother had been stabbed and her mother was also crying. Then Mrs. Lily Khan inquired of them and then asked the petitioner whereupon the petitioner replied that it was false and that they had been married. Then Mrs. Lily Khan consoled her and asked her not to weep like that and said that the petitioner had deceived her. On hearing this the respondent No. 1 started crying again and said, "No it was not true" and said that they were given papers to sign for passport. Then the mother said, "It was not proper to stay here any more as they had been deceived like this." Then they hurried and left for Khulna by the car of her sister Mrs. Lily Khan where they stopped at the rest house of Ajax Jute Mill where Mr. Naim (D. W. 4) also stays, where she halted for the night and came to Dacca in the next morning. Neither the petitioner nor her brother Amanullah Khan visited them in the house during the night nor did they see them off from the Heliport in the next morning. She denied of having ever gone with the petitioner to picture or picnic or to new market or to sight seeing. Then she admitted that she went to the Holy Family Hospital on the 23rd of February 1964, as she was ill.

Respondent's witness No. 6 is David Ghosh. In his evidence he has corroborated in material particulars the evidence of his sister respondent No. 1 regarding the signature of the paper. He has said that he had signed two forms which were also on the table and he had signed them as the petitioner had asked them to do so. He has stated that at that moment he was not in a normal condition and could only remember that the paper was printed papers which he signed. He has testified that after taking them in the house the petitioner had gone out and then his sister and his mother came back from school. In the meantime the petitioner had also come. On seeing the mother the respondent No. 1 ran out of the bedroom, embraced her, and told her about the stabbing of her brother Badal Ghosh at Dacca. On hearing of of which his mother also started crying. His sister Mrs. Lily Khan inquired of my mother and on hearing why the mother was crying Mrs. Lily Khan went to the drawing room and after a few minutes of discussion with Mr. M. R. Khan came back to the bedroom and told that it was all false and that Badal Ghosh had not been stabbed at Dacca and that the petitioner had married his youngest sister, Rina Ghosh. On hearing of which his mother became really angry and she stated that they could not stay for a single minute there as the petitioner at whose house they were living had cheated them in this manner and they packed up Mrs. Lily Khan is also alleged to have announced that she would also leave the house. After packing, the witness and his mother and his sister, respondent No. 1 left for the airport and on seeing that the airport was completely deserted they knew that there was no other flight and that they had to leave for Khulna and went straight to Ajax Jute Mill's rest house, where they arrived at about 4 or 4-30 P.M. He woke up Mr. Naim who stays in the rest house and his mother handed over some money to purchase two tickets for the First flight of the next morning. That night they stayed in the rest house and in the next morning by the Ajax Jute Mill's jeep they were escorted to the Heliport by Mr. Naim who saw off his mother and his sister at the Heliport. After reaching Mr. Naim at the Ajax Jute Mill the witness went back straight in the same jeep to Jessore. He has testified that he did not see either the petitioner or his brother Mr. Amanullah Khan on the night of 22nd February, at Khulna or at the Heliport on the next morning.

D. W. 7 is Badal Ghosh, respondent No. 3. He has met the petitioner on the 18th of January 1964. But he has stated that he met him in the Airport and he remembered the fact because it happened that D. I. G. Mr. Idris was also there, whom the petitioner had come to see off. He has denied that there was any talk of marriage between the petitioner and himself or that there was any talk of such marriage on his returning to Dacca between himself and the petitioner or any of the relations of the petitioner. Regarding the incident of 18th February, his version is that his sister Mrs. Lily Khan came to Dacca and stayed with them at his Sidheswari residence. At 4-30 or so in the evening his sister Ajanta and her husband Tajal Islam with his other sister Clara Ghosh who were then staying with Ajanta at Santi Nagar came over to their place at Sidheswari to meet his sister Lily and her husband. At that time, their friend Mr. Abdus Sahid was also there. Then Mrs. Lily Khan suggested that they should go to the new market for certain purchases and after a while all of them boarded his car and went through the Elephant Road to new Market. On the way his sister Mrs. Lily Khan suggested that she should call on her mother-in-law and complete the formalities so all of them dropped in there and as usual they were entertained with sweets and tea. But this witness denied that any sweets were taken to that place by them. He has stated that the sweets were offered to them. So far as the incident after marriage on 22nd February 1964, his evidence is that in the morning of 23rd February 1964, his mother and his sister came to his house at 9 A.M. and the mother and his sister was crying and on query he learnt that the petitioner had played a foul game on the respondent No. 1 by taking her signatures in a few papers by which the latter declared that he was married with her. On receiving this news he was depressed and went straight to Elephant Road to the house of Mr. Anwar Ali Khan, elder brother of Mr. M. R. Khan, to discuss the matter. Mr. Anwar Ali Khan not being found at his house he is alleged to have stated the facts to his mother and his wife there, who were shocked to hear the news. He left the house telling Mrs. Anwar Ali Khan to tell Mr. Anwar Ali Khan to meet him in the office in this connection which Mr. Anwar Ali Khan did, and discussed the matter with him after narrating the whole story and assured him that the matter would be settled amicably and asked him not to be worried about it. He met Mr. Amanullah Khan, and Mrs. Amanullah Khan, Major S. A.

Khan in the 3rd week of March. He met the petitioner in his office and requested him to settle the matter whereupon the petitioner is alleged to have stated that he was really very sorry and assured him that he would settle the matter amicably by making a sort of a legal declaration saying that this marriage was no marriage at all and that would be the end to the whole affairs. When asked to make a declaration he stated that he had no time and he would come shortly to make such a declaration which he never did. He met Anwar Ali Khan again but with no result and after sometime they were suddenly served with a lawyer's notice addressed to respondent No. 1 and his mother. He also received a separate notice. Thereafter he realised that the petitioner was not willing to have any sort of respectable or amicable settlement and on legal advice served a reply.

The last witness of the respondent is Mr. Abdus Sahid. He has given evidence as to the events of the 18th of February 1964, and he admitted that he was in the party and he has given evidence that there was no talk of marriage there between the petitioner and the respondent No. 1 nor any notice of marriage. So far as the events of 23rd February 1964, he has stated that he was going to Lahore on that day and was making preparation when the respondents Nos. 2 and 1 came to his house. When he heard crying he came out and learnt that the petitioner had married Rina by giving bluff.

I have given only the purport of the evidence in examination-in-chief and not discussed here their evidence as affected by the cross-examination which I propose to discuss later on.

Both sides have criticised the evidence and have sought to falsify the evidence of the other side by cross-examination.

Mr. Pal has tried to show that the story of intimacy and love growing between the period 1959-62 as given out by the petitioner has received no corroboration and remains the petitioner's own story. He has gone to the length of seeking to establish that there was practically no acquaintanceship between the petitioner and the respondent No. 1. His cross-examination was directed to falsify the story of the petitioner at every stage. He has sought to prove that the petitioner has failed to prove that he took the respondent No. 1 out to picture or picnic or that he went everyday to the house of the Ghosh family during the period of 1959 to 1962. He has sought to assail the evidence of the petitioner on this point by pointing out that the petitioner had no conveyance other than the official conveyance during this period and by eliciting from the petitioner the statement that he never used Government conveyance for his own house. Ultimately the position came to this that the petitioner had to admit that he had used such conveyance for his purpose of visiting the Ghosh family but that it was "in the course of performing his Official duties". The respondent No. 1 had totally denied her acquaintanceship and she has also been corroborated by her mother, respondent No. 2 and her elder sister, Mrs. Lily Khan. On the other hand, the petitioner's brother P. W. 7. Anwar Ali Khau has given evidence that he had seen them together in new Market prior to the alleged marriage. Mr. Pal's trump-card was that during this period, there were many occasions in which the petitioner and the respondent No. 1 were absent from Dacca but the petitioner has not been able to produce a single letter written by the respondent No. 1 to the petitioner. In my opinion, the establishment of the relationship between the petitioner and the respondent No. 1 during this period though material, is not essential for the purpose of establishing the alleged marriage. It is admitted by Mrs. Lily Khan that she was acquainted with the petitioner since 1945. She admits in her cross-examination that Ghosh family as well as the petitioner's family were acquainted with each other since, 1938. Then it is an admitted fact that Mrs. Lily Khan married the eldest brother of the petitioner. In such circumstances, it is not improbable, specially when these two families were so close together after the marriage of the eldest daughter of one to the eldest brother of the other, that acquaintanceship would be far more firm between the members family than is sought to be established by the respondents. In these circumstances, specially when no restriction in the shape of parda was available it would not be strange if any feeling of intimacy grew up between a young girl of one family and a young man of the other. I, therefore, hold, on a careful analysis of the evidence of both sides that it is not true that during this period the petitioner or the respondent did not meet each other.

It is also quite possible that some sort of feeling might have grown between them. The respondent No. 1 has said in answer to a question with regard to a later period that she used to regard the petitioner as her elder brother. Therefore, there was at least this feeling for the petitioner in the mind of the respondent No. 1. The seeds of affection were there if it required some catalytic agent to transform the seed into that of love.

Next I take up the question of proposal made by the petitioner to respondent No. 3 for the marriage with respondent No. 1. The petitioner has come up with a story, though with some embellishments, which has a ring of truth about it. There was no necessity for giving evidence on this episode if in fact, it had not taken place. There are, it is true, some lacunas in the evidence as elicited in the cross-examination but the over all picture remains that the petitioner did meet with the respondent No. 3 on the alleged date at Jessore. Respondent No. 3 himself admits the fact of meeting with the petitioner but shifted the place of meeting from the residence of the petitioner to the airport. Considering the relationship of the parties prior to the marriage it would be rather strange for respondent No. 3 not to meet the petitioner in his bungalow while passing through Jessore.

Moreover, as I have already stated, there was no necessity for the petitioner to bring in this episode as it was not really material to the establishment of his case. In these circumstances, I hold that the petitioner met respondent No. 3 at Jessore on the 18th January 1964 and did propose for the hand of respondent No. 1.

Skipping over the intervening period I may take up the evidence with regard to the visit in December 1963, by the respondent No. 1 and her mother to Jessore. Respondent No. 1 has herself admitted that during this period they had been taken to various places mentioned by the petitioner with one or two exceptions. The petitioner alleges that during this period the respondent No.

1 urged him to expedite the marriage. Mr. Pal has argued that there is no other evidence on this point than that of the petitioner and respondent No. 1 and respondent No. 2 both have denied that such request was made by the respondent No. 1. In cross-examination of the petitioner it has been elicited that a prolonged discussion about the marriage took place with Mrs. Lily Khan but the petitioner has no evidence other than his own word of mouth to prove the same. D. W. 5, Rina Ghosh (respondent No. 1) has categorically denied that she expressed any desire to marry the petitioner during her stay at Jessore in 1963 or that she insisted upon early solemnisation of the marriage. She has repeated the same answer saying that she never expressed her desire to marry Mr. Mustafizur Rahman- Khan, the petitioner but used to regard him as her elder brother. The mother, D. W. 3 respondent No. 2 has stated that she did not find her daughter, Rina during her stay in December, in intimate terms with the petitioner which she has also repeated in her cross-examination. Although the petitioner was asked in cross-examination that he had a prolonged discussion over his marriage with respondent No. 1 with Mrs. Lily Khan it does not appear that any denial was taken from Mrs. Lily Khan with respect to this question. It is true that Mrs. Lily Khan was examined on Commission earlier. But Mrs. Lily Khan is a witness on behalf of the respondent and this factum of discussion with Mrs. Lily Khan has been brought out in the cross-examination of the petitioner although in his examination in chief, the petitioner had not stated that he had this discussion with Mrs. Lily Khan. His evidence in chief on this aspect is as follows! "We went to picture together, attended Jatra parties, I had a prolonged discussion about the marriage which was for one reason or other being delayed. Mrs. Rina Khan disclosed to me that it was because of the opposition of her eldest sister Mrs. Lily Khan that the marriage was being delayed. Then she also assured me that she would make a last effort to convince and to obtain in the consent of her relations after coming to Dacca and in the event they still delayed matters, she would come to Jessore and get the marriage solemnised there." Therefore, it appears that the respondents are aware of such a discussion although the petitioner had not made any such statements in the examination-in-chief. The lengthy cross-examination is directed to elicit that the petitioner had a discussion with Mrs. Lily Khan. The respondent has helped in filling up the lacuna on behalf of the petitioner. The admitted fact that there were various picnics and other pleasure trips at the instance of the petitioner participated in by the respondent No. 1 and her sister and in view of the relationship between the parties it would not be strange if such proposal is made and discussion held.

I next come to the crucial stage, that is, the 13th of January to 23rd February 1964. The reason for this second visit within such a short time is given by the petitioner as the desire of respondent No. 1 to expedite the marriage. The respondent, on the other hand, has made out a case of their flying from Dacca to seek shelter in Jessore. The respondent has also made out a case that not only the members of the Ghosh family were seeking shelter at Jessore under the roof of the petitioner but also their neighbours the Debnath family did the same. The story of the neighbour, however, is totally absent from the written statement filed on behalf of the respondent. Whatever be the motive, I find that on 13th of January 1964, Mrs. Ghosh, Rina Ghosh, Clara Ghosh, and

David Ghosh, Tati Ghosh, were at Jessore in the house of the petitioner where Mrs. Lily Khan and her family were also staying. Regarding Debnath family, till the trial there was no mention of them and in my opinion it is an improvement.

I find then that Clara Ghosh and Tati Ghosh left Jessore one at the end of January, and the other in the first week of February.

According to respondent's own story, the family of Debnath had also left by the end of January. What was the purpose of Rina Ghosh and her mother continuing to stay under the roof of petitioner? I asked Mr. Pal here but he had no answer excepting offering a suggestion that there might be dearth of accommodation at Dacca. The explanation offered by Mr. Pal does not appeal to me. The notice of marriage under the Special Marriage Act is alleged to have been given on the 1st of February 1964. So far as this notice is concerned it is true that it is an unilateral document in which respondent No. 1 nor any of the member of her family had anything to do with. Nevertheless, it bears the token of an official act. At one stage Mr. Pal had wanted to challenge this document as forgery. P. W. 1 who has been examined to prove this document has stated that it was put on the notice-board by him and it bears his signature as I have already stated earlier. A notice under section 5 of the Special Marriage Act is not required to be hung up in the notice-board. The only requirement is to forthwith enter a true copy of every such notice in a book to be for that purpose furnished to the Registrar by the Provincial Government to be called the "Marriage Notice Book under Act III of 1872" and such book shall be open at all reasonable times, without fee to all persons desirous of inspecting the same.

If the notice had not been entered into such a Marriage Book the validity of the notice itself could have been questioned but in cross-examination it has been elicited from P. W. "1". Was the notice entered in any Book? "The notice was copied in a book. The Book in which the notice was entered is not your register? There is also another Register Book." The witness himself had not stated anything regarding the copying of the notice in the Notice Book but I am satisfied from his answer in the cross-examination that he did not copy the notice in the marriage Notice Book. It is true that the said Marriage Notice Book has not been proved but the entry of the notice in the Marriage Notice Book was not challenged in such terms in the written statement. Therefore, I hold that the Registrar was not required to bring or to prove the copying of the said notice in the Marriage Notice Book when he produced the original notice itself.

Chronologically the next stage in the events is the alleged meeting at 22, Elephant Road. On 18th of February 1964, it is the case of both the sides that there was actually a meeting. The petitioner wants to establish that the meeting was a sort of joint celebration regarding finalisation of the marriage between the parties where the fact of notice having been given was mentioned and the registration of marriage at Jessore was accepted was to follow and celebration of the marriage at Dacca was proposed.

The witnesses who spoke about this incident are P. W. 7, Anwar Ali Khan, P. W. 8, whose evidence is but hearsay the petitioner, P. W. 9 Sanatan Saha and P. W. 10 Abdul Hamid Chowdhury. It is true that there are some exaggerations and embellishments and mutual contradiction in the evidence of petitioner's witnesses on this point but the basic fact has been deposed to with a degree of clarity and certainty which compels acceptance. Mr. Lily Khan as well as respondent No. 3 clearly admit that such a meeting took place. Mrs. Lily Khan has sought to give it a colour that she went to see her mother-in-law, Respondent No. 3 and made out a case, which would make the visit a casual one by saying that they had decided to go to New Market and as the Elephant Road was a short cut while going to New Market from Sidheswari, they went through that road and dropped in casually at 22, Elephant Road to enable Mrs. Lily Khan to perform her duties of visiting her mother-in-law. This Court is aware of the topography of

Dacca. It is true that Elephant Road would be a short cut to New Market but is not the usual road to New Market. The going to 22, Elephant Road on that day cannot be brushed aside by the respondent in such a manner. The details given by P. W. 7 which has been corroborated by P.

Ws. 9 and 10 clearly establish that there was such a meeting on that day and that the purpose of the meeting was the talks about the marriage of the petitioner and the respondent No. 1.

The next stage is the most important one, the date on which the actual marriage is alleged to have been celebrated. The petitioner's case is that on that day he left with respondent No. 1 and her brother David Ghosh for the registration of his marriage with the blessings of the respondent No. 2. The petitioner has stated that the actual date of registration was kept secret from Mrs. Lily Khan. According to the petitioner's case, the three of them went to the Registrar's Office where by previous arrangement P. Ws. 2 and 3 were waiting for them and they were introduced to the Registrar by P. W. 2. The Registrar has given evidence that he handed over the form first for declaration as prescribed by section 10 of the Act. The form was filled in accordance with the direction of the petitioner by P. W. 2 N. Zaman, the Court Inspector and it was first signed by the petitioner and then by the respondent No. 1 and then by her brother, David Ghosh and then the two other Police Officers, P. Ws.

2 and 3. It also bears the signature of the Registrar. This declaration form Exh. 2 is clearly printed and the writing thereon are also absolutely legible and clear. Both the petitioner as well as the respondent No. 1 have signed the same. Against the signature of the petitioner, it is clearly printed "Signature of the Bride-groom". Against the signature of the respondent No. 1 it is clearly printed. "Signature of the Bride." Moreover it has been elicited in cross-examination of the respondent No. 1 that she has a passport and she has gone to India several times. She is an educated lady who appeared in the B. A. examination. One cannot seriously accept the contention that she signed this declaration without adverting to the printed words at least to the effect "Signature of the Bride". The signature of the respondent No. 1 as well as of her brother David Ghosh appears to be in a bold and steady hand unlike those of persons overwhelmed with grief. On this point we have also the evidence of the Marriage Registrar in the cross-examination that the bride and David Ghosh were looking cheerful. This declaration is also important from the point of view of what I am going to hold later. In the said form, on the date of the event, both have given a declaration to the effect: "I do not profess the Christian, Jewish, Hindu, Muhammadan, Parsi, Buddhist, Sikh, or Jaina religion." They have both also given the declaration: "I am aware that if any statement in this declaration is false, and if in making such statement I either know or believe it to be false, or do not believe it to be true, I am liable to imprisonment and also to fine." The next stage is the actual solemnisation according to the provisions of section 11 of the Act which reads as follows: "11. The marriage shall be solemnised in the presence of the Registrar and of the three witnesses who signed the declaration. It may be solemnized in any form, provided that each party says to the other, in the presence and hearing of the Registrar and witnesses, 'I (A) take thee to be my lawful wife (or husband)'." Now the Registrar would be the most competent witness as to the carrying out of the provisions in the said section. In his evidence-in-chief he has simply said, "the marriage was solemnised after the declaration" after which he gave the certificate Exh. 3. After he has given his evidence regarding the certificate, his memory was sought to be refreshed by some questions but his answers are not explicit that the solemnisation was in accordance with the provisions of law and the question and his answers were as follows: "Q. What are the formalities in solemnising the marriage? A. There is an oath of marriage. The marriage is solemnized by taking oath—both by the bride-groom and the bride.

Q. Was the oath administered by you personally ? A. Yes, I administered the oath personally.

Q. Were these formalities performed? A. Yes." It did not seem to me that the Registrar was

aware of the provisions of section 11 of the Special Marriage Act. The evidence of P. W. 2 on this point is: "Thereafter the Registrar found out a book. He looked into some Section. Thereafter he said that both of them should take oath.

He said that this is the oath. Mr. Khan took oath in my presence three times within my hearing and Mrs. Rina Ghosh too." No specific question was put to him in cross-examination. This two evidences were recorded on the first day of the trial, that is, on 2nd day of July 1965. Thereafter, there was a gap of four days and the trial was resumed on the 6th day of July 1965, when P. W. 3 Doulat Hossain Khan was examined. His evidence is as follows:— "Then the District Registrar brought out a book and said that you would have to take oath. Then Mr. Khan took oath. 'I Mr. M. R.

Khan take thee Rina Ghosh to my legal wife'. Then he pronounced the same thrice. Then Rina Ghosh also took the oath. 'I, Miss Rina Ghosh take Mr. Mustafizur Rahman Khan to be my legal husband.' She also repeated this oath thrice and then put her signature and then we the three witnesses signed. Then the District Registrar put his signature." P. W. 8 who was examined on the same day as P. W. 3, corroborates P. W. 3. It is clear that the provisions of section 11 were overlooked on the day when the alleged marriage took place. If this provisions of the said section had been carried out, there is no reason why the Marriage Registrar could not have given the same evidence on this point as P. W. 3 Daulat Hossain Khan. To my mind this mandatory provisions of law was not in fact carried out. I shall deal later with the effect that such omission will have on the marriage itself.

The next stage is the Registrar's Certificate. The certificate is in a book which seems to have been maintained at least since 1899 and has a look of authenticity. There is another certificate on the obverse side regarding another marriage which took place on the 10th of April, 1965. In this document Exh. 3 there is one correction, namely, the date. It was first written '1st' and had been penned through to 22nd. The correction bears the initial of the Registrar. The mistake I believe was due to the mistake of the person who filled up the certificate form who must have been carried away by his impression of the date of the notice.

The Registrar has failed to say who actually filled up the body of the certificate which he signed but there is a suggestion in crossexamination that the notice form and the declaration form Exh. 2 were filled up by the Head Clerk-cum-Cashier of the Registrar, one Kazi Adeluddin but it has been proved that the body of the notice Exh. 1 and the declaration form Exh. 2 were filled up by P. W. 2 N. Zaman, I have compared the handwriting of Exh. 3 with that of Exhs. 1 and 2 and I find that they are different. Obviously the certificate was filled up by the said Kazi Adeluddin or some other Clerk of the Registrar's Office. In any case I find that beneath the signature of the Registrar as well as that of petitioner and respondent No. 1 and the other three witnesses the date is given clearly as 22nd of February 1964. Therefore the mistake in the body of the certificate was inadvertently made. This document is also a printed document and the words are clear and legible. Against the signature of the petitioner the words "Signature of the Brideg-room" are printed and against the signature of respondent No. 1 the words "Signature of Bride" are printed. The observation which I have made with regard to the declaration form with regard to the signature of respondent No. 1 and that of her brother David Ghosh holds also good for this Exh. 3. I cannot accept the proposition that the respondent No. 1 and her brother signed this document thinking it to be an application for passport or other travel document. This is the most important stage of the case I shall come back to this stage again.

The next stage is that which happened at Jessore immediately afterwards. So far as the petitioner is concerned his case in the plaint is that he went straight from the Registrar's Office to the Daud Public School. In his evidence he sought to establish that he left the respondent No. 1

and her brother at the Bungalow and went to bring Mrs. Lily Khan from the school. On receiving the news Mrs. Lily Khan is alleged to have flown into a rage and on arrival at the bungalow she created a scene which led to her going away as well as induced Mrs. Asnat Ghosh, respondent No. 2 to propose that the respondent No. 2 and respondent No. 1 should leave for Dacca immediately to hold the celebration there. He has gone so far as to allege that Mrs. Lily Khan actually physically assaulted respondent No. 1. The story given by respondent No. 1 regarding this part of the case is that she was still weeping at the news of the stabbing of her brother Badal Ghosh at Dacca when respondent No. 1 and Mrs. Lily Khan came and Mrs. Lily Khan discovered from the petitioner that he had been telling a lie regarding the stabbing and that in fact he had married the petitioner. Mrs. Lily Khan's evidence on this point is very significant. In answer to the question: "Did you enquire of Rina and your mother about the event?" She said.

"Rina told my mother your son had been stabbed" and my mother was not in a condition to state anything. Mr. Khan said, "We went to the Registration Office and got married." "I said that this was not true Badal has not been stabbed. These people went to the Registration Office and got married" V' (underlining is mine) This statement of Mrs. Lily Khan shows that the respondent No. 1 voluntarily went to the Registrar's Office and got married. This evidence was taken on commission in surroundings which would not render any persons nervous not to speak of a lady of Mrs.

Lily Khan's erudition and qualifications. It has been read over to her and she has signed the same. I think that this really gives the true picture of the event. The story of Badal Ghosh being stabbed at Dacca if at all circulated by the petitioner it was a camouflage in which the respondent No. 1 also participated in order to mitigate the shock to Mrs. Lily Khan. Both the parties are not coming out with the truth as to what really happened in the Bungalow after the so-called solemnisation of the marriage before the Registrar. Something really happened is obvious for which neither the petitioner nor the respondent No. 1 was prepared and which turned the course of event. One cannot but feel that there had been an undercurrent of opposition by Mrs.

Lily Khan regarding the marriage of the petitioner with respondent No. 1. She might have participated in the event of 18th of February 1964 with the hopes that in fact the marriage might not be solemnised but on being informed regarding the actual solemnisation of the marriage something must have given away in her mind and she must have let loose a flood of feeling and revealed things which actuated respondent No. 1 to take up, the attitude that she has done. The Court cannot give a finding on this aspect of the case as the truth is diligently being obscured by both the parties. That both the parties are still on good terms is obvious from Exh. 9, a letter written by the respondent No. 3 even on 1st of May 1965 and which letter, the respondent No. 3 has acknowledged before me with candour.

The subsequent events are of not much importance but the fact remains that due to the outburst at the bungalow on 22nd February 1964, the petitioner and respondent No. 1 never lived as husband and wife.

It is not important in whose car respondent and her mother came to Khulna or who booked the ticket but the fact that stares one in the face is that on the very day of marriage the respondent No. 1 came away from the bungalow of the petitioner.

Another significant factor is that a very material witness, the eldest brother of the petitioner Mr. S. A. Khan is not coming forward to give evidence in this case. The petitioner has sought to prove by a prescription granted by one Dr. Asdar Ali that the respondent No. 1 was treated as Mrs. M. R. Khan but I cannot accept the prescription even if it was genuine and could be specified as that meant for the respondent No. 1 as evidence of the factum of marriage of respondent No. 1 to the

petitioner.

The factum of marriage is sufficiently established a part of the oral evidence of P. Ws. 1, 2, 3 and by the certificate Exh. 3 and by the corroborative evidence, the application for leave Exh. 5 on which the certificate of the Deputy Commissioner as well as D.

I. G. of Police, Khulna Range finds place.

Now coming back to the marriage itself. The first point that strikes one is that the petitioner claims that the marriage was celebrated under the Special Marriage Act, Act III of 1872, the essentials of such a marriage is set out in section 2 of the Act which reads as follows: "2. Marriages may be celebrated under this Act between persons neither of whom professes the Christian or the Jewish, or the Hindu or the Muhammadan, or the Parsi or the Buddhist or the Sikh or the Jaina religion, (or between persons each of whom professes one or other of the following religions, that is to say, the Hindu, Buddhist, Sikh or Jaina religion) Upon the following conditions.

99 It is obvious, therefore, that neither Christian, nor a Muhammadan can marry under the provisions of this Act. So far as the petitioner is concerned he has himself said that he did not like the idea of a marriage under this Act as it meant renunciation of his religion. He has signed the declaration form saying that he does not profess any religion but when the Court asked him whether he had made any subsequent changes in his official records he answered, 'No'. In the affidavit which he has sworn he has described himself as a Muslim. Therefore, it remains a fact that before his declaration he was a Muslim and after his declaration he continued to be a muslim. For a Muslim to say that he is not a Muslim it is apostasy. The provisions of the Act itself makes any false declaration punishable. If the petitioner has not in fact renounced his religion he has made a false declaration. So far as the respondent No. 1 is concerned she has categorically stated that she is a Christian, Roman Catholic and she never renounced her faith and, therefore, she in fact has given a false declaration in the declaration form Exh. 2. In the case of Dr. Niranjana Das Mohan v. Mrs. Ena Mohan and others (1) it has been laid down that what the parties were or not at heart is as irrelevant for the purposes of this section as it would be difficult to ascertain, the criterion is what they professed or did not profess according to their declarations made at the time. Facts of the case were that the actual declaration form was not available and the contention was raised that the declaration made by the parties before the Registrar was defective. The respondent said that while she herself declared that she professed no religion, the petitioner declared that he was a Hindu. The petitioner in Court further said that he too declared that he professed no religion. Their Lordships concluded that as the actual declaration was not available it was difficult to say what happened. Had there been any such irregularity or discrepancy as the respondent stated then the Registrar would not have solemnised the marriage. Then the question was raised that even if the declaration had been made, it was in fact false, since the respondent, according to her evidence of the trial was, was always a Christian at heart and yet she declared before the Registrar that she professed no religion. Therefore, their Lordships were pleased to hold that even then the marriage could not be avoided whatever penalty she might incur for making a false declaration under section 21 of the Act and their Lordships gave their reasons which I have stated already. But the obvious lacuna in the reasoning is that the Act applies only to those persons who do not profess the specified religions or both of whom do not profess the specified religions. Unless one is not a Christian or not a Muslim, so far as this case is concerned, one cannot contract a marriage under this Act. Therefore, I hold that on the evidence of Rina Ghosh herself and on the admission of the petitioner neither of them were competent to contract a marriage under the Special Marriage Act and as such the whole proceedings before the Marriage Registrar, Jessore, was void.

Taking up the actual performance of the marriage also I find that the provisions of section 11 are mandatory provisions and from the evidence I conclude that this formality was not in fact performed. On this ground also the marriage is void.

Taking up the petitioner's case as regards his consent being obtained by fraud I hold that the subsequent conduct of the respondent No. 1 cannot be made to lead to the inference that she had no intention to contract the marriage with the petitioner. As I have already held, I do not accept her story that she was taken to the Registrar's Office for the purpose of signing the passport form. There are some other obvious lacuna in the evidence in this respect. If at all it was necessary for signing her passport it was not necessary that it should be signed before an Officer. The form could have been easily brought to her at the bungalow. At one stage her case was that she was actually being taken from the bungalow on the way to be escorted to the border. If that was the case, she has not explained why she was brought back to the bungalow. Moreover one cannot believe that she would voluntarily go away leaving her mother and sister in the lurch. Therefore I hold that the petitioner's consent was not obtained by fraud as respondent No. 1 herself voluntarily had gone to the Registration Office to contract the marriage. The question is whether in these circumstances, the petition under section 19 of the Divorce Act was competent. It has been held in the case of *Mst. Title v. Alfred Robert Jones* (1) that in accordance with the Letters Patent of the said High Court no application under section 19 of the Divorce Act was maintainable on the ground that the necessary ceremonies were not performed but a suit for declaration that the marriage was null and void on such grounds had to be instituted in the Court below from where the High Court could transfer it for trial before it. In the present suit, the allegation was made that the consent of the petitioner was obtained by fraud and as such it was maintainable in this Court under section 19 of the Divorce Act. This Court had, therefore, the initial jurisdiction to entertain the application. After the trial it appeared that the entire marriage was void. In such circumstances, it would not have been proper] to refer the parties to the Court below. Even the Ruling of the Allahabad High Court lays down that the High Court could transfer to itself for trial even if the case had been instituted in the lower Court. Therefore, I hold that this Court has jurisdiction to adjudicate in the matter.

Therefore, I hold that the marriage purported to have been performed on the 22nd February 1964, between the petitioner Mustafizur Rahman Khan and the respondent No. 1 Rina Ghosh is null and void because, firstly, the petitioner was a Muslim before the marriage and is continuing to be a Muslim after the marriage and the declaration made by him on the 22nd February 1964, in Exh. 2 was a false declaration and respondent No. 1 Rina Ghosh as clearly testified by herself was at the time of the alleged marriage and till this date a Christian of the Roman Catholic sect and she also made a false declaration on the 22nd February 1964, in the said Exh. 2 and as such no marriage under the Special Marriage Act (Act III of 1972) was possible to be contracted between the parties and secondly because the essential formalities laid down in section 11 of the Special Marriage Act were not performed.

One other matter remains to be noted, that is, certain allegations which were made against the character of the petitioner and of his witness P. W. 7 in cross-examination by Mr. Pal I have dealt with this in my order dated 7th of July ' 1965. I had expunged from the record the first question and its answer.

So far as the second question is concerned no fresh material has been placed before the Court. Similarly, at the time of the cross-examination of the petitioner himself an objection was taken by Mr. Bhattacharjee to certain portions throwing aspersion on the character of the petitioner. I referred Mr. Pal to the order dated 7th of July 1965, he assured me that he was sufficiently aware of his responsibility in the matter but no fresh material has been produced before the Court regarding the truth or otherwise of the allegation passed against P. Ws. 7 and 8.

In these circumstances the said witnesses P. W. 7 and P. W. 8 may proceed in the matter if they so desire.

In the facts and circumstances of the case the parties will bear their own costs.

The suit is, therefore, decreed for the reasons given above and the marriage registered on 22-2-64 at the Marriage Registrar's Office, Jessore between the petitioner M. R. Khan with the respondent No. 1 Mrs. Rina Khan is declared to be null and void.

k, b. a. Suit decreed.

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